

25LBCV01259 25LBCV01259

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-30

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Case Number: 25LBCV01259 Hearing Date: June 30, 2026 Dept: S27

1.

Parties' Positions

Defendant moves to compel further responses to SROGs, FROGs, RPDs, and RFAs because Plaintiffs served objections only responses to all discovery. Plaintiffs oppose, contending their failure to serve proper responses is excusable neglect per CCP §473(b), the motion is substantively moot because they have served responses in substantial compliance with the Code, and sanctions are not warranted.

2.

CCP §473(b)

As the Court has previously admonished Plaintiffs' firm, CCP §473(b) does not apply to discovery responses or discovery motions. See *Zellerino v. Brown* (1991) 235 Cal.App.3d 1097, 1105, holding that the Discovery Act has its own remedy for failure to timely respond, and that remedy is exclusive. Plaintiffs' counsel must cease citing §473(b) in connection with discovery motions.

3.

Note re: Reservation

Defendant reserved this motion as a motion to compel initial responses. This is a motion to compel further, not initial, responses.

Defendant must ensure it makes reservations for the correct motion in the future in connection with this and other cases.

4.

Separate Statement

Because this is a motion to compel further responses, a separate statement was required. CRC 3.1345. Defendant did not file a separate statement. The Court notes that Plaintiffs' original responses consisted solely of objections, such that a separate statement was arguably not necessary to resolve the issues presented by way of the motion.

5.

Note re: Opposition

Defendant filed a single motion to compel further responses to all outstanding discovery. Plaintiff, on 6/16/26, filed four separate oppositions, with one opposition being filed for each of the four discovery vehicles at issue on the motion. The oppositions are substantially the same document, and appear to be yet another example of fee churning. The oppositions mention sanctions, which are not sought in the moving papers. The opposition concerning RFAs relies on CCP §§2030.210, 2030.220, 2030.230, and 2030.240, all of which apply to interrogatories and not requests for admissions. The Court has repeatedly admonished Plaintiffs' attorney to ensure documents contain applicable authorities, and Plaintiffs' attorney continues to fail to do so.

The opposition papers also include the Honorable Sabina A. Helton as the bench officer in the caption, but the case is assigned to the Honorable Mark Kim. The opposition to the motion to compel further responses to RFAs indicates the correct department – S27 – but the opposing declaration includes an incorrect department – S28.

6.

Motion Moot

Plaintiffs served supplemental responses to the subject discovery on 6/16/26. The motion is therefore substantively moot. To the extent the sufficiency of the supplemental responses is contested by Defendant, the Court asks the parties to meet and confer in good faith to resolve any outstanding issues.

7.

Sanctions

Defendant's notice of motion and points and authorities do not mention

sanctions. Defense Counsel's declaration

also does not mention sanctions.

Plaintiffs, in opposition to the motion, argue sanctions should not be imposed. The Court finds Plaintiffs'

conduct is absolutely sanctionable, but does not impose sanctions in light of the lack of a request for sanctions in the moving papers.

8.

Trial Continuance

Defendant's moving papers ask for a trial continuance in light of the fact that discovery responses were not timely served. Trial is not scheduled until mid-October. The Court is not continuing

the trial date at this time, and asks the parties to work expeditiously to resolve any additional discovery issues prior to trial so the trial date can go forward as scheduled.

Defendant is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department

does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on

the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If

the parties do not submit on the tentative, they should arrange to appear remotely.